

STATE OF NEW YORK

1026--A

Cal. No. 1039

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. KAVANAGH, FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Finance -- reported favorably from said committee, ordered to first report, amended on first report, ordered to a second report and ordered reprinted, retaining its place in the order of second report

AN ACT to amend the executive law, in relation to establishing a voluntary waiver of the right to purchase firearms, rifles, or shotguns

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The executive law is amended by adding a new section 221-e to read as follows:

§ 221-e. Voluntary waiver of right to purchase firearms, rifles, or shotguns. 1. An individual may file a voluntary waiver of the right to purchase a firearm, rifle or shotgun with the division of state police, in a manner that shall be determined by the superintendent. Such individual shall then be prohibited from purchasing firearms, rifles and shotguns. The division of state police shall verify the individual's identity prior to accepting such form. The individual filing the waiver may provide an additional individual to be contacted if the waiver is revoked as set forth in subdivision three of this section.

2. The division of state police shall maintain statewide records of individuals who waive the right to purchase firearms, rifles or shotguns as set forth in subdivision one of this section and revocations of such waivers as set forth in subdivision three of this section. Such records shall be maintained for internal use in a manner determined by the superintendent. The division of state police shall enter each waiver into the New York state national instant criminal background check system and any other state computer-based systems used by law enforcement agencies or others to identify prohibited purchasers of firearms, rifles and shotguns within twenty-four hours of receipt of the waiver.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 3. An individual may file a revocation of the waiver with the division
2 of state police in a form that shall be determined by the superinten-
3 dent. The division of state police shall verify the individual's identi-
4 ty prior to accepting such revocation. Twenty-one days after receiving
5 the revocation, the division of state police shall remove the individual
6 from the New York state national instant criminal background check
7 system and any other state computer-based systems used by law enforce-
8 ment agencies or others to identify prohibited purchasers of firearms,
9 rifles and shotguns, to indicate that the individual is no longer a
10 prohibited purchaser of firearms, rifles or shotguns due to the volun-
11 tary waiver.

12 4. A waiver pursuant to this section may not be required of an indi-
13 vidual as a condition for receiving employment, benefits or services.

14 5. No records required by this section shall be subject to disclosure
15 and shall be confidential with respect to all matters involving health
16 care, employment, education, housing, insurance, government benefits,
17 and contracting.

18 6. Any information about an individual that is contained in, or trans-
19 mitted to, the division of state police shall not be used for any
20 purpose other than to determine the eligibility of the individual to
21 receive a firearm.

22 7. Any person who knowingly makes a false statement or representation
23 regarding such person's identity when submitting a voluntary waiver of
24 the right to purchase a firearm, rifle or shotgun shall be guilty of
25 offering a false instrument for filing in the second degree, as defined
26 by section 175.30 of the penal law.

27 § 2. This act shall take effect on the ninetieth day after it shall
28 have become a law.